

The Demurrer is **OVERRULED** in part and **SUSTAINED** in part as outlined above. Leave to amend is granted regarding the Fifth Cause of Action in the timeframe to amend set forth in CRC 3.1320(g). Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

KNOX VS. MOHAMUD, ET AL.

CASE NUMBER: 23CV-0202275

Tentative Ruling on Motions to Compel Discovery: Defendant Habib Bashir Mohamud filed a Motion to Compel Plaintiff's Responses to Defendant's Pre-Trial Demand for Production of Documents and a Motion to Compel Plaintiff's Responses to Pre-Trial Interrogatories. Both motions were originally noticed for August 3, 2026, however, they were continued to today at the ex parte hearing on July 23, 2026 due to Plaintiff Jamaal Knox's counsel stating that objection free responses would be provided. On August 4, 2026, Defendant filed a Notice informing the Court that responses have still not been provided. Plaintiff did not oppose the motion.

As a preliminary matter, when the motions were filed, the trial was scheduled to commence on August 11, 2026, making the August 3, 2026 hearing date less than fifteen days prior to trial. At the ex parte hearing on July 23, 2026, the Court granted Defendant's request to hear discovery motions after the cut-off date.

Merits. A party has thirty days after service to respond to a Request for Production or Interrogatories. CCP §§ 2031.260(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a) and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Defendant has provided evidence that discovery was propounded and that Plaintiff did not provide verified responses within the required timeframe.

Sanctions. Monetary sanctions are sought in the amount of \$2,310 in each motion. This is comprised of five hours of attorney time on each motion at the rate of \$450 per hour plus a filing fee of \$60. No evidence was provided to support the hourly rate requested, which is higher than average for Shasta County. The Court finds \$300 to be a reasonable hourly rate. No breakdown was provided for the five hours requested on each motion. Given the lack of Opposition, the Court will award 3.5 hours on the Pre-Trial Demand for Production of Documents and 2.5 hours on the Pre-Trial Interrogatories motion. This reflects a reduction of 1.5 hours for not needing to review an Opposition and prepare a substantive Reply and an additional one hour reduction for attending the hearing on the Pre-Trial Interrogatories motion because the motions will be heard at the same time. This amounts to \$1,110 on the Pre-Trial Demand for Production of Documents motion and \$810 on the Pre-Trial Interrogatories motion.

Both motions are **GRANTED**. Plaintiff is ordered to provide verified, objection free responses within fifteen days of Notice of Entry of Order. Monetary sanctions are imposed in the amounts of \$1,110 and \$810 as noted above. Defendant provided proposed Orders that will be modified to reflect the Court's ruling.

KUNAU VS. CITY OF REDDING, ET AL.

CASE NUMBER: 24CV-0205953

Tentative Ruling on Motion for Summary Judgment: Defendant and Cross-Complainant Sysco Sacramento, Inc. ("Sysco") moves for summary judgment against Plaintiff Cody Kunau pursuant to Code of Civil Procedure section 437c on the grounds that there is no triable issue of material fact because: 1) as to the cause of action for negligence, there is no evidence Defendant breached any duty of care or that any act or omission by Defendant was a substantial factor in causing Plaintiff's injuries, and 2) as to the cause of action for battery, there is no evidence Defendant intended to cause harmful or offensive contact. In the alternative, Sysco seeks summary